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(12) **United States Design Patent** (10) **Patent No.: US D1,092,742 S**
McAtamney et al. (45) **Date of Patent: ** Sep. 9, 2025**

(54) **THERAPEUTIC GAS CYLINDER BAY**

FOREIGN PATENT DOCUMENTS

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CN 202430301544.6 * 12/2024
EP 0659445 A1 6/1995

(Continued)

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OTHER PUBLICATIONS

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Z&HA Oxygen Concentrator, Online, Published date Sep. 1, 2021, Retrieved on May 14, 2024 from URL: <https://www.amazon.de/-/en/Portable-Concentrator-Intelligent-Adjustable-Humidifier/dp/B09F62Y5PT> (Year: 2021).*

(**) Term: **15 Years**

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Assistant Examiner — Eric Eldone Tormanen

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USPC

(58) **Field of Classification Search**
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D24/185, 216, 220, 227; D15/138, 147;
D10/96

CPC .. A61P 11/00; A61P 11/06; A61P 9/10; A61P
11/16

See application file for complete search history.

(57) **CLAIM**

The ornamental design for a therapeutic gas cylinder bay as shown and described.

DESCRIPTION

FIG. 1 is a top, isometric view of a therapeutic gas cylinder bay, showing our design, wherein oblique line shading indicates a transparent surface;

FIG. 2 is a front elevational view thereof, wherein oblique line shading indicates a transparent surface;

FIG. 3 is a rear elevational view thereof;

FIG. 4 is a right side elevational view thereof, wherein oblique line shading indicates a transparent surface;

FIG. 5 is a left side elevational view thereof, wherein oblique line shading indicates a transparent surface;

FIG. 6 is a top plan view thereof, wherein oblique line shading indicates a transparent surface; and,

FIG. 7 is a bottom plan view thereof.

The broken lines depict portions of the therapeutic gas cylinder bay which form no part of the claimed design.

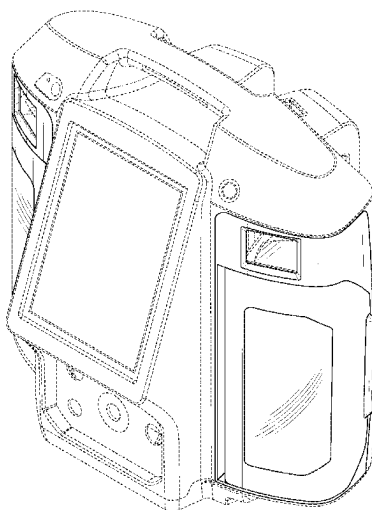
(56) **References Cited**

U.S. PATENT DOCUMENTS

5,558,083	A	9/1996	Bathe et al.	
5,732,693	A	3/1998	Bathe et al.	
5,752,504	A	5/1998	Bathe	
5,827,950	A	10/1998	Woodbury et al.	
6,089,229	A	7/2000	Bathe et al.	
6,125,846	A	10/2000	Bathe et al.	
6,164,276	A	12/2000	Bathe et al.	
6,543,444	B1	4/2003	Lewis	
D530,854	S *	10/2006	Xu	D27/148
7,159,608	B1	1/2007	Lucas, Jr. et al.	
D549,342	S *	8/2007	Ross	D24/164
D590,505	S *	4/2009	Mazoyer	D24/164
7,523,752	B2	4/2009	Montgomery et al.	

(Continued)

1 Claim, 5 Drawing Sheets



(56)

References Cited**U.S. PATENT DOCUMENTS**

7,768,409	B2	8/2010	Parias	
8,282,966	B2	10/2012	Baldassarre et al.	
8,291,904	B2	10/2012	Bathe et al.	
8,293,284	B2	10/2012	Baldassarre et al.	
8,366,815	B2 *	2/2013	Taylor	B01D 53/0415 96/380
8,431,163	B2	4/2013	Baldassarre et al.	
8,573,209	B2	11/2013	Bathe et al.	
8,573,210	B2	11/2013	Bathe et al.	
D700,701	S *	3/2014	Taylor	D24/164
D701,963	S *	4/2014	Abarbanel	D24/164
8,757,148	B2	6/2014	Montgomery et al.	
8,776,794	B2	7/2014	Bathe et al.	
8,776,795	B2	7/2014	Bathe et al.	
8,795,741	B2	8/2014	Baldassarre	
8,846,112	B2	9/2014	Baldassarre	
D729,936	S *	5/2015	Reback	D24/164
D729,937	S *	5/2015	Acker	D24/164
D730,525	S *	5/2015	Acker	D24/164
9,816,642	B2	11/2017	Fowler et al.	
D808,017	S *	1/2018	Ito	D24/164
D861,874	S *	10/2019	Hirano	D24/164
D884,187	S *	5/2020	Robert	D24/164
10,953,187	B2 *	3/2021	Galbraith	A61P 11/00
D930,835	S *	9/2021	Taylor	D24/164
D1,069,120	S *	4/2025	Mao	D24/164
2003/0189492	A1	10/2003	Harvie	
2005/0004511	A1	1/2005	Figley et al.	
2006/0283517	A1	12/2006	McCulloh et al.	
2008/0150739	A1	6/2008	Gamard	
2010/0003349	A1 *	1/2010	Miller	A61K 33/00 423/405
2010/0030917	A1	2/2010	Kaneko	
2011/0140850	A1	6/2011	Wassel et al.	
2012/0080103	A1	4/2012	Levine et al.	
2012/0116292	A1	5/2012	Montgomery et al.	
2012/0226451	A1	9/2012	Bacot et al.	
2014/0048063	A1	2/2014	Bathe et al.	
2014/0127081	A1	5/2014	Fine et al.	

FOREIGN PATENT DOCUMENTS

EP	0960629	A2	12/1999
WO	9844976	A1	10/1998
WO	9922796	A1	5/1999
WO	9959662	A1	11/1999
WO	0195972	A2	12/2001
WO	2008112423	A1	9/2008
WO	2010044039	A2	4/2010
WO	2011084538	A2	7/2011
WO	2012094008	A1	7/2012
WO	2013054217	A1	4/2013
WO	2014144184	A2	9/2014
WO	2016096056	A1	6/2016

OTHER PUBLICATIONS

Annex to Form PCT/ISA/206 Communication Related to the Results of the Partial International Search in PCT/US2015/030217, dated Aug. 4, 2015, 7 pages.
 English Translation of Abstract of Japanese Application H09299485, 1 page.
 English Translation of Abstract of Japanese Application No. 2010508877A, 1 page.
 European Search Report in European Application No. 19168698.9 dated Oct. 22, 2019, 16 pages.
 Examination Report No. 1 for Australian Application No. 2022211800, mailed on Nov. 16, 2023, 4 pages.

Examination Report No. 1 for Australian Patent Application No. 2021204009 dated Mar. 16, 2022, 2 Pages.
 Extended European Search Report for Application No. EP19168698.9, dated Jan. 24, 2020, 14 Pages.
 Extended European Search Report for European Application No. 23215086.2, mailed on Feb. 12, 2024, 10 pages.
 Final Office Action in U.S. Appl. No. 14/709,316, dated Sep. 5, 2018, 11 pages.
 INOblender Operations Manual, Ikaria, Inc. 2010, 34 pages.
 INOmax DS (Delivery System): Operation Manual (800 ppm INOmax (nitric oxide) for Inhalation), Ikaria, Inc. 2010, 112 pages.
 INOmax DSIR (Delivery System): Operation Manual (800 ppm INOmax (nitric oxide) for Inhalation), Ikaria, Inc. 2012, 136 pages.
 INOmax DS.sub.IR INOblender—Pre-Use Checkout, Ikaria, Inc. 2014, 2 pages.
 INOmax Label, Nitric Oxide Gas, INO Therapeutics 2013, 2 pages.
 INOvent Delivery System: Operation and Maintenance Manual (CGA Variant), Datex-Ohmeda, Inc. 2000, 180 pages.
 International Preliminary Report on Patentability for International PCT Patent Application No. PCT/US2015/030217, mailed on Nov. 24, 2016, 17 pages.
 International Search Report and Written Opinion in PCT/US2015/030217, dated Oct. 19, 2015, 23 pages.
 Japanese Office Action in Japanese Application No. 2017-511572 dated Mar. 19, 2019, 8 pages.
 Non-Final Office Action for U.S. Appl. No. 16/748,319 dated May 24, 2022, 18 pages.
 Non-Final Office Action in U.S. Appl. No. 16/825,840 dated May 7, 2020, 11 pages.
 Non-Final Office Action in U.S. Appl. No. 16/825,848 dated May 7, 2020, 8 pages.
 Non-Final Office Action in U.S. Appl. No. 16/217,969, issued May 7, 2020, 8 pages.
 Office Action dated May 3, 2021 for Canadian Patent Application No. 2941761, 5 Pages.
 Office Action for Australian Application No. 2015255688 dated Jun. 7, 2019, 5 pages.
 Office Action for Canadian Application No. 2,941,761 mailed on Jul. 28, 2023, 4 pages.
 Office Action for Canadian Application No. 3,138,339, mailed on Jan. 17, 2023, 3 pages.
 Office Action for Canadian Application No. 3,138,342 mailed on Nov. 7, 2023, 4 pages.
 Office Action for Canadian Application No. 3,142,415, mailed on Jan. 18, 2023, 4 pages.
 Office Action for Canadian Patent Application No. 2941761, mailed Feb. 11, 2022, 4 Pages.
 Office Action for European Application No. 19168698.9, mailed on Oct. 14, 2022, 6 pages.
 Office Action for Japanese Patent Application No. 2017511572, mailed Sep. 21, 2021, 6 Pages.
 Office Action for Mexican Application No. MX/a/2021/007810 mailed on Jul. 15, 2022, 7 pages.
 Office action for Mexican Application No. MX/a/2021/007814 dated Jun. 30, 2022, 9 pages.
 Office Action for Mexican Application No. MX/a/2021/007816, mailed on Oct. 7, 2022, 6 pages.
 Office action regarding U.S. Appl. No. 14/709,316 dated Feb. 1, 2018, 10 pages.
 Office action regarding U.S. Appl. No. 14/709,316 dated Feb. 26, 2019, 11 pages.
 Partial European Search Report for European Application No. 23215095.3, mailed on Feb. 12, 2024, 15 Pages.
 Using the INOpulse DS Subject Guide, Ikaria, Inc. 2012, 50 pages.
 Office Action dated Jul. 24, 2023 for New Zealand Patent Application No. 432323, 2 Pages.

* cited by examiner

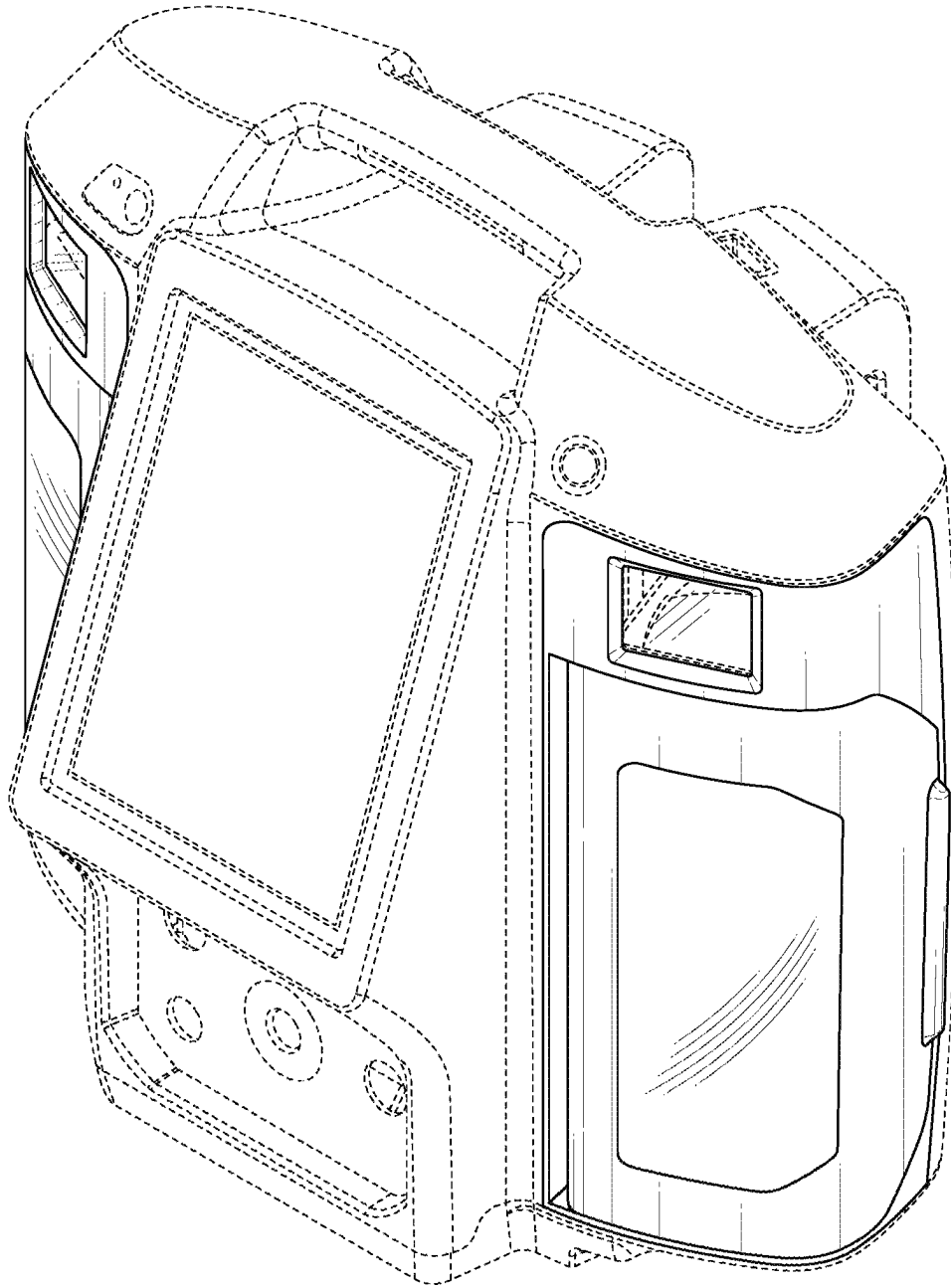


FIG. 1

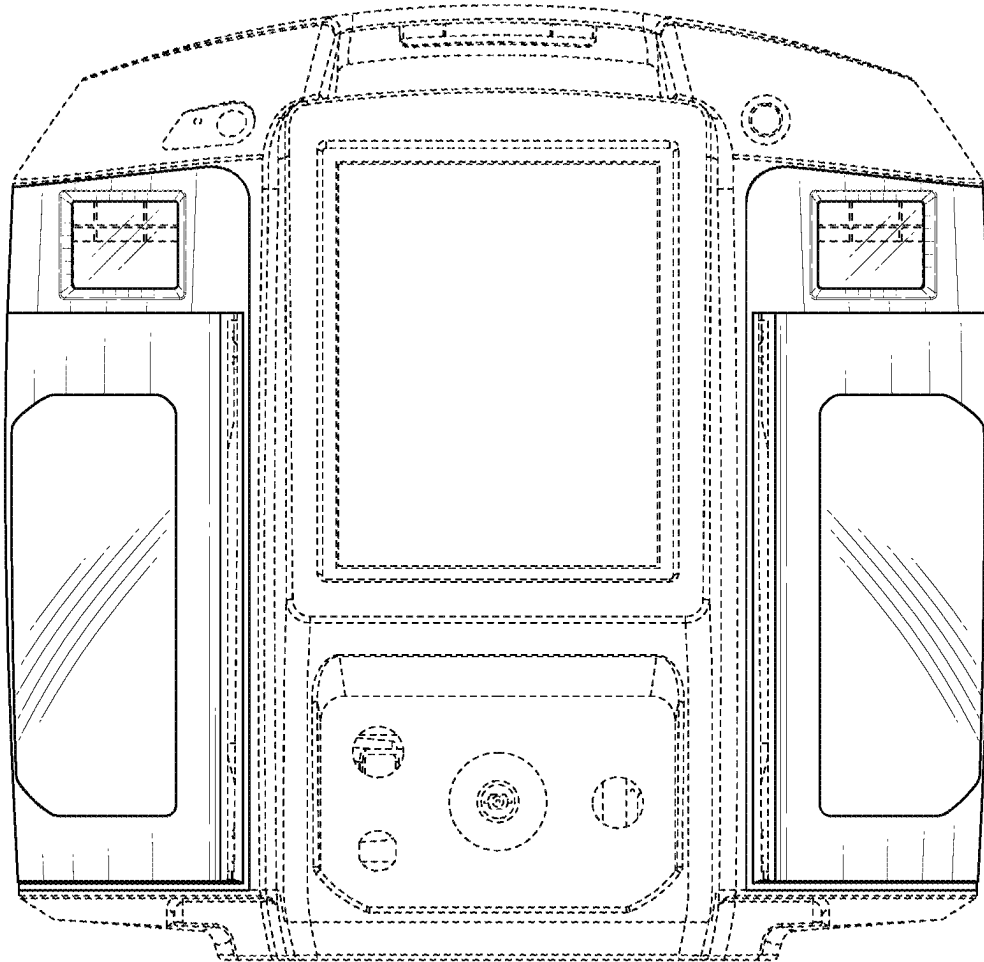


FIG. 2

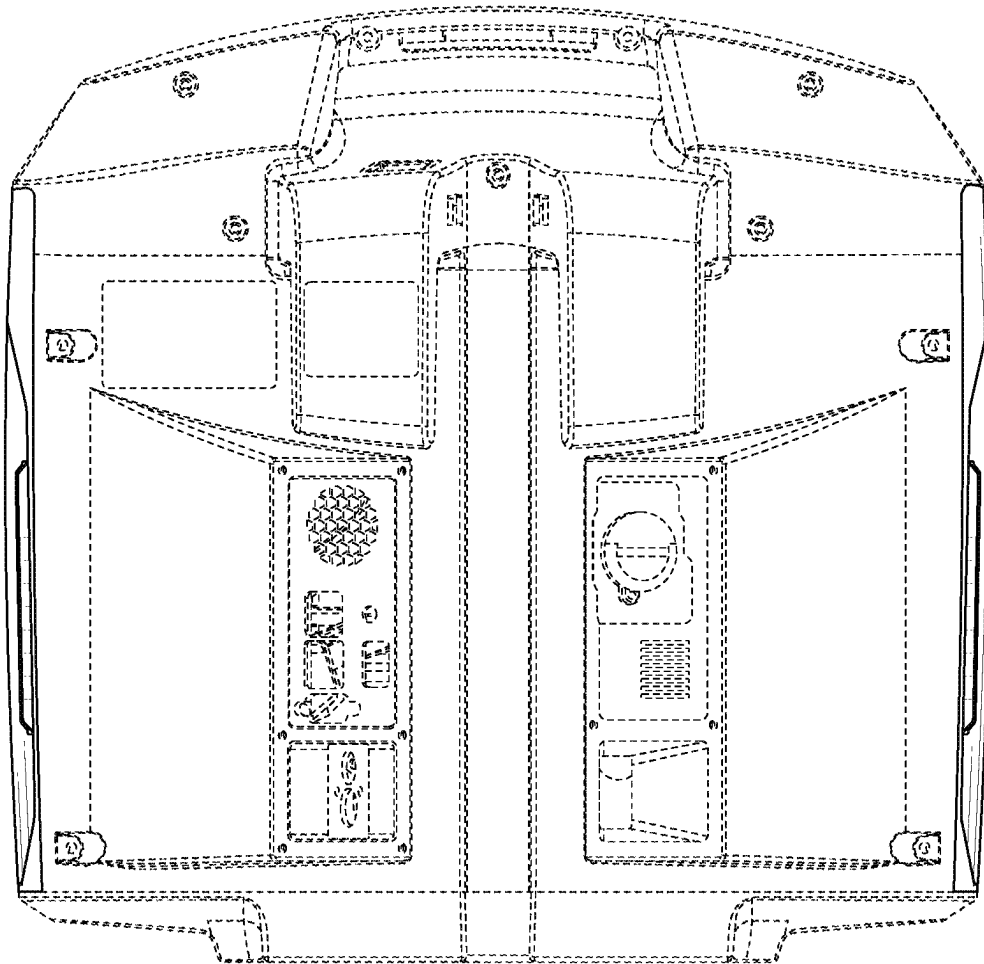


FIG. 3

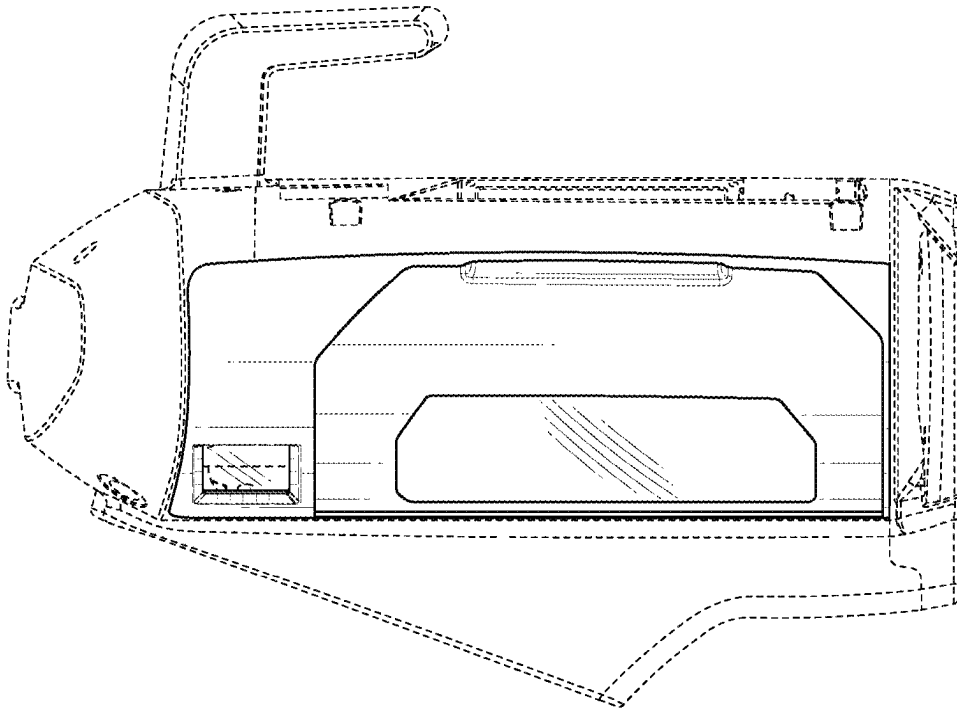


FIG. 5

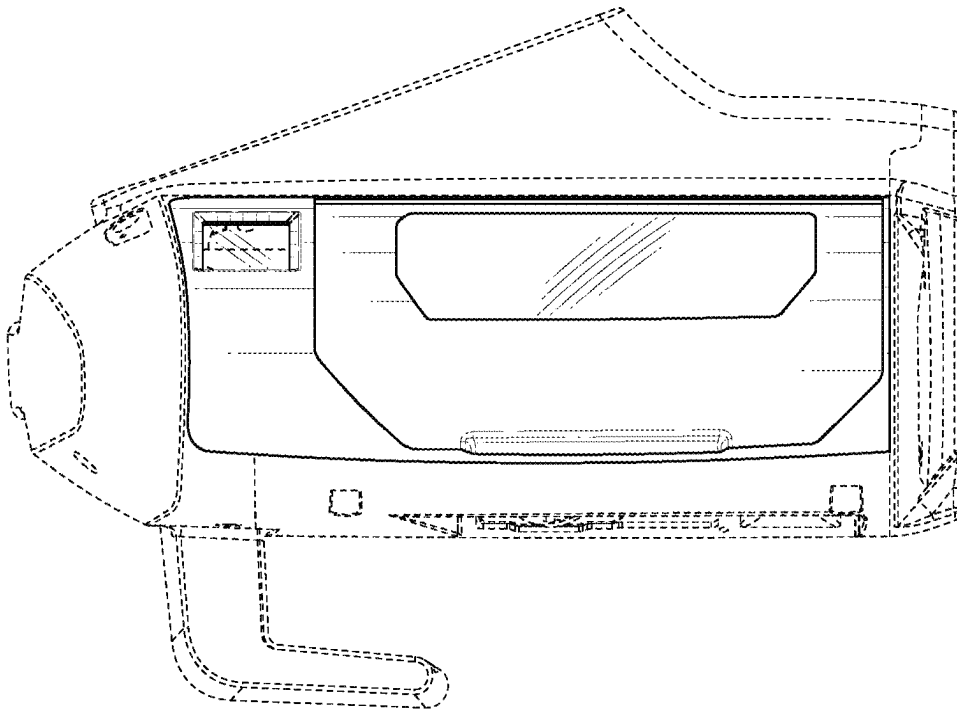


FIG. 4

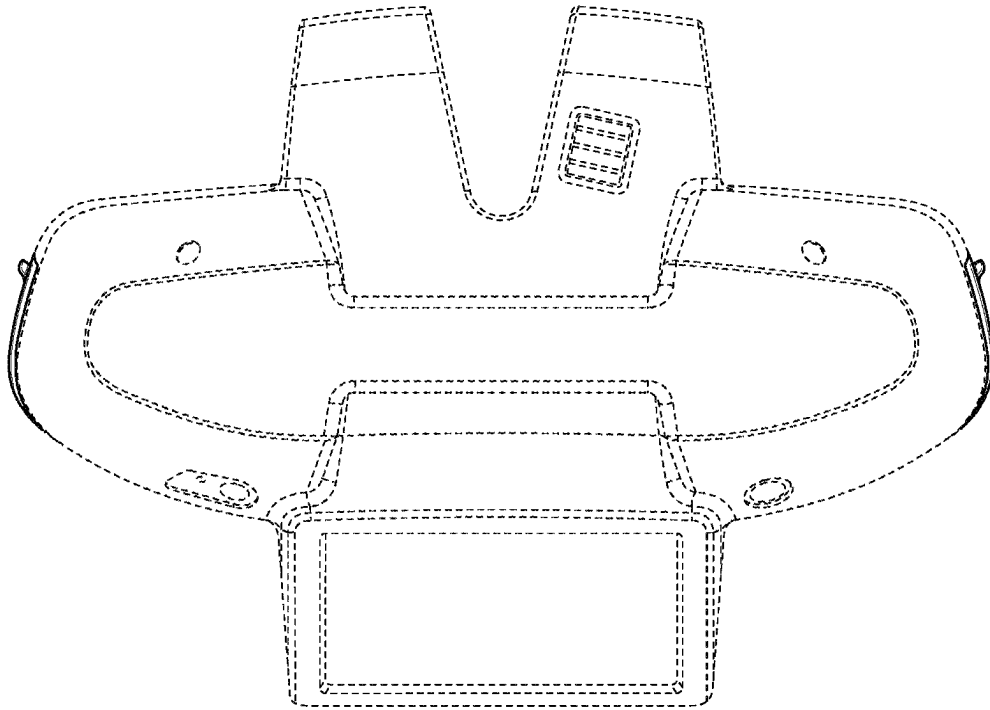


FIG. 6

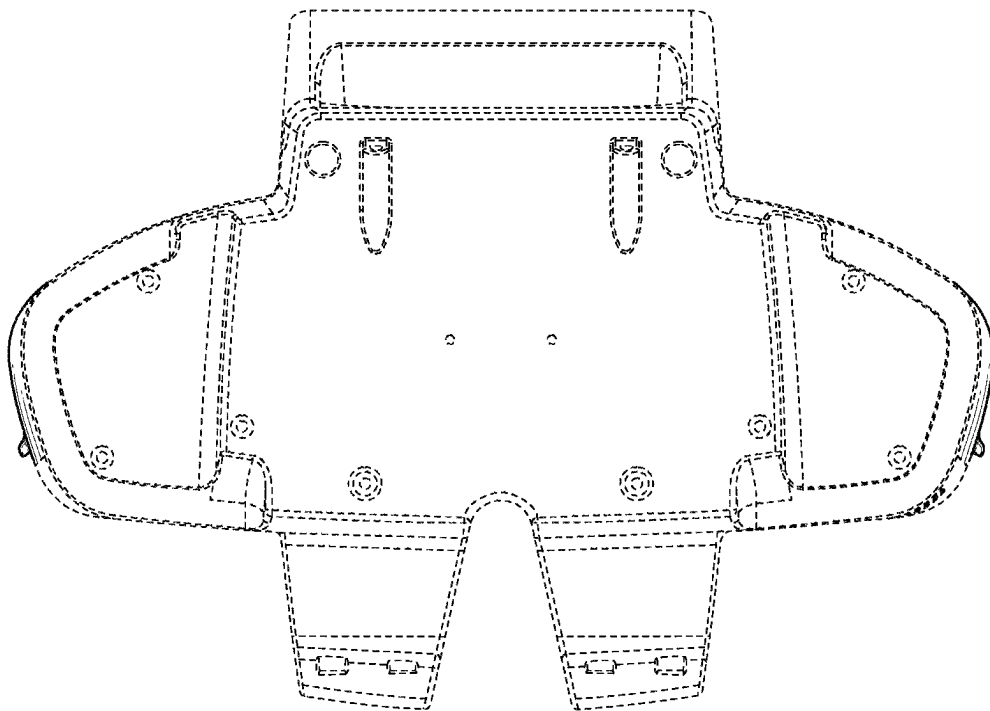


FIG. 7